

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lara Freishtat	Team: Team # 4	CCRB Case #: 200700586	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/12/2007 4:18 PM	Location of Incident: § 87(2)(b)	Precinct: 45	18 Mo. SOL 7/12/2008	EO SOL 7/12/2008	
Date/Time CV Reported Fri, 01/12/2007 4:44 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/12/2007 4:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eugene Oreilly	31842	933112	045 PCT
2. Officers			
3. SGT Mervin Bennett	00255	920019	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Stephanie Achong	28218	930371	045 PCT
2. POM Robert Kall	26109	930452	045 PCT
3. POM Luis Batista	05958	936182	045 PCT
4. POM William Valentino	29730	931359	045 PCT
5. POM Jose Martinez	17289	917941	045 PCT
6. POM Fred Jones	18172	936826	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers stopped § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in the Bronx.	
B. Officers	Abuse: Officers stopped § 87(2)(b) at § 87(2)(b) in the Bronx.	
C. Officers	Abuse: Officers searched § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in the Bronx.	
D.POM Eugene Oreilly	Abuse: PO Eugene O'Reilly searched § 87(2)(b) at § 87(2)(b) in the Bronx.	
E.SGT Mervin Bennett	Discourtesy: Sgt. Mervin Bennett spoke rudely to § 87(2)(b) at § 87(2)(b) in the Bronx.	
F.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett threatened to arrest § 87(2)(b) at § 87(2)(b) in the Bronx.	
G.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett threatened to evict § 87(2)(b) from her apartment at § 87(2)(b) in the Bronx.	

Officer(s)	Allegation	Investigator Recommendation
H.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett entered § 87(2)(b) apartment § 87(2)(b), in the Bronx.	[REDACTED]
I. Officers	Force: Officers used physical force against § 87(2)(b) at § 87(2)(b) in the Bronx.	[REDACTED]

Synopsis

On January 12, 2007, at approximately 4:18 PM, § 87(2)(b) and § 87(2)(b) were walking into the § 87(2)(b) in the Bronx when officers stopped them in front of § 87(2)(b) (allegations A and B). The officers explained to them that there had been a call about some shots being fired in the area and the officers allegedly proceeded to search everyone, with PO Eugene O'Reilly searching § 87(2)(b) (allegations C and D). After finding nothing, the officers sent the group on their way. The group then walked towards § 87(2)(b) as one of their friends, § 87(2)(b) resided there. However, when they reached the front of the building, they encountered more police officers. § 87(2)(b) seeing this from his apartment on the § 87(2)(b) floor, approached the group and informed the officers that his friends were there to see him. An officer, Sgt. Mervin Bennett, then informed them that they had to leave the scene, so § 87(2)(b) brought the group, minus § 87(2)(b) to his apartment, as officers had arrested her § 87(2)(a) 160.50. While in § 87(2)(b)'s apartment, § 87(2)(b) and some of his friends (which ones are unknown) began yelling at Sgt. Bennett. Sgt. Bennett yelled back "You're not so tough now, huh?" § 87(2)(b) then began yelling obscenities at Sgt. Bennett, including calling him a "pussy" and told him "If you didn't have that gun and badge, it'd be a different story." Sgt. Bennett replied "Fuck that shit, I'm banging the door down (allegation E). Sgt. Bennett and some officers then entered the building. § 87(2)(b) asked his mother, § 87(2)(b) to speak with the officers. § 87(2)(b) exited her apartment and met up with the officers in the hallway. Sgt. Bennett began speaking with § 87(2)(b) about her "sons" and telling her she needs to "straighten them out." § 87(2)(b) clarified though that only one of the kids was her son. After hearing this, Sgt. Bennett began banging on the door, instructing § 87(2)(b) to open it. Sgt. Bennett also stated that if § 87(2)(b) did not open the door, he would arrest § 87(2)(b) and get her evicted from the apartment (allegation F and G). Sgt. Bennett then instructed § 87(2)(b) to remove the teenagers that were not her own from the apartment. § 87(2)(b) knocked on her door and § 87(2)(b) opened it. § 87(2)(b) entered her apartment and instructed everyone to leave. Sgt. Bennett had followed § 87(2)(b) inside the apartment, to the point that he had one foot in the doorway, when § 87(2)(b) yelled that he did not have permission to be in the apartment and had to leave and that he § 87(2)(b) was going to call 311 (allegation H). Sgt. Bennett allegedly replied "Fuck you, I'm a sergeant! Call 311 (also allegation E)!" The group of teenagers then all began to leave the apartment, walking past the officers who were lined up in the hallway. As § 87(2)(b) was walking by, an officer said to him "What are you looking at" and then grabbed § 87(2)(b) by the neck and pushed him down the stairs (allegation I). Officers then threw § 87(2)(b) into a mailbox and were "hitting him and everything" before placing him in handcuffs and taking him to the 45th Precinct stationhouse (also allegation I). All of the officers then left the scene, without recovering the firearm or finding the suspected shooter. § 87(2)(b) and § 87(2)(b) were each released with a summons § 87(2)(a) 160.50.

§ 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b), who is § 87(2)(b), filed a complaint about this incident by telephone with the CCRB on January 12, 2007 (see enclosure # 8a-8c). § 87(2)(g) made no mention of what led to the officers coming to his apartment or of an officer threatening to evict his mother. He also made no mention of any profanity being used by any officers or of him telling the officer to leave his apartment. He was interviewed by Inv. D'Olimpio at § 87(2)(b) in the Bronx on January 24, 2007 (see enclosure # 10a-10c).

On January 12, 2007 at approximately 4:45pm, § 87(2)(b) was in his apartment, located at § 87(2)(b) in the Bronx, when he heard someone from outside yell “Freeze! Put your hands up!” He looked outside the window and saw that there were several police officers, approximately 10 of them, talking with his friends outside. He then went downstairs to get his mother, § 87(2)(b) mail and retrieve his friends, who were on their way over to his apartment. § 87(2)(b) then opened the main door to his building and asked one of the officers what was going on. The officer stated that someone had reported that gun shots were fired on that block and the police were investigating. He was then instructed to go back inside and while he did, the officers searched “everyone.” However, § 87(2)(b) and an unknown boy did not have any identification on them. § 87(2)(b) was placed in handcuffs and was walked towards the main street where several police vehicles were. § 87(2)(b) saw § 87(2)(b) placed inside a police vehicle. It should be noted that he later altered his account, stating that he did not witness anything prior to § 87(2)(b)s handcuffing, so it is unclear if he actually saw his friends being searched.

§ 87(2)(b) then informed the officers that the teenagers outside were there to see him and a black male uniformed officer told them all to get inside. § 87(2)(b) invited his friends into his apartment, which § 87(2)(b) consented to, because she is, “cool with all of them.” § 87(2)(b) and his friends then went to the window to see if the officers had left the scene. § 87(2)(b) began exchanging words with the black officer, who identified himself as a sergeant and was identified through the investigation as Sgt. Mervin Bennett. Sgt. Bennett yelled up at him, “You’re not so tough now, huh?” § 87(2)(b) then yelled several obscenities back at him, specifically calling Sgt. Bennett a, “pussy,” and telling him, “If you didn’t have that gun and badge, it’d be a different story,” after rejecting his calls to go outside and “see what happens.” Sgt. Bennett then said “Fuck that shit, I’m banging the door down.” § 87(2)(b) then asked § 87(2)(b) to go outside and talk to Sgt. Bennett so that he would not further “disrespect him.”

§ 87(2)(b) exited her apartment and stood in the hallway, while § 87(2)(b) observed what was going on through the peephole. Sgt. Bennett had come into the hallway and he began yelling into the apartment that everyone had to come outside. When § 87(2)(b) denied Sgt. Bennett entry to the apartment and also did not let his friends leave the apartment, Sgt. Bennett told § 87(2)(b) that if he did not let him in, or have his friends leave, he would arrest his mother and get them kicked out of New York City Housing. § 87(2)(b) then told Sgt. Bennett that he had no right to get them kicked out because his mother, “always pays the bills.” § 87(2)(b) then knocked on the door and instructed her son to let her back inside. As she entered, Sgt. Bennett tried to enter in front of her while § 87(2)(b)s friends went to leave. § 87(2)(b) then walked into the apartment, crying, while Sgt. Bennett stuck his foot inside the front door and remained inside the apartment. § 87(2)(b) told Sgt. Bennett that he could not stay in his apartment and that he was calling 311, to which Sgt. Bennett replied, “Fuck you, I’m a sergeant, call 311.” § 87(2)(b) went to retrieve his phone to call 311 and upon his return, he saw that Sgt. Bennett had left. § 87(2)(b) looked through the peephole and saw one of his friends, named, § 87(2)(b) and identified as § 87(2)(b) get placed against the wall by two officers before he was walked out of the building. § 87(2)(b) was later released. § 87(2)(b) then saw another of his friends, § 87(2)(b) placed in handcuffs and taken away with the other officers who had remained outside. § 87(2)(b) was later informed by § 87(2)(b) that he was issued a summons for § 87(2)(a) 160.50 at the PSA8 station house.

It should be noted that while attempts were made to contact § 87(2)(b) via the telephone and mail in order to schedule a date for him to view photographs of the potential subject officers, § 87(2)(b) never contacted the agency. As such, § 87(2)(b) never viewed photographs of the officers.

Results of Investigation

While § 87(2)(b), § 87(2)(b), § 87(2)(b) were all victims in this incident, none of their respective statements were obtained. This investigation was unable to make contact with any of these individuals. While no attempts were made to contact § 87(2)(b) as no one knew his last name or any contact information for him, multiple attempts to contact § 87(2)(b), § 87(2)(b) and § 87(2)(b) were made. Multiple letters were mailed to § 87(2)(b) at his address, which was confirmed with the DMV, but he never contacted the agency and none of the letters were returned to the CCRB. Despite checks with Metrosearch, the White Pages and Cole’s Directory, no number for § 87(2)(b) could be located. And

while no last name could be found for “§ 87(2)(b)” multiple letters were mailed to him at his provided address, none of which were returned to the agency. And while checks with Metrosearch and Cole’s Directory were negative for a telephone number, a check with the White Pages was successful. However, a call to the number stated that it was no longer in service. § 87(2)(b) also never contacted the agency. Lastly, while a search for § 87(2)(b) via Metrosearch, the DMV and the White Pages were all negative, multiple letters, none of which were returned to the agency, were mailed to her provided address. § 87(2)(b) also never contacted the agency and none of these four individuals’ statements about the incident were obtained.

§ 87(2)(b) :

§ 87(2)(b) was interviewed by Inv. D’Olimpio at § 87(2)(b) in the Bronx on January 24, 2007 (see enclosure # 9a-9c). It should be noted that while she provided a formal statement, § 87(2)(b) A withdrawal letter was mailed to § 87(2)(b) and it was signed and received at the agency on March 14, 2007 (see enclosure # 25p).

On January 12, 2007, at approximately 4:45pm, § 87(2)(b) sent her son, § 87(2)(b) outside to get her mail. § 87(2)(b) had recently returned home from surgery and suffers from multiple sclerosis and has trouble walking. Shortly after sending her son outside, she looked outside her window and saw 4-5 officers and a group of kids. Shortly after that, § 87(2)(b) returned inside with approximately six of his friends. § 87(2)(b) explained that the police had just arrested one girl and so he told the remaining teenagers to come inside. § 87(2)(b) let them in and the kids proceeded to stand in her living room and yell at an officer outside. § 87(2)(b) described § 87(2)(b) as having a “smart mouth” and stated that he was yelling at the officers and they were yelling back for him to come outside, but she told him he could not go out (It should be noted that § 87(2)(b) mentioned something about “F you and F this,” and possibly something along the lines of “I’ll fuck you up,” but never clarified if this was the officer who said it or her son or one of the other kids). § 87(2)(b) then asked § 87(2)(b) to go and talk to the officer for him. § 87(2)(b) instructed § 87(2)(b) not to open the door for anyone but her.

§ 87(2)(b) went into the hallway and saw 4-5 officers; one of whom accidentally pushed her to the side when he ran into the hallway. One officer, a black male in uniform who identified himself as a sergeant, identified through the investigation as Sgt. Bennett, began talking to § 87(2)(b) about her “sons.” § 87(2)(b) clarified that only one of the teenagers was her son while the rest were his friends. Sgt. Bennett then instructed her to, “straighten those kids out,” and “get them in line,” to which she repeated that only one of the teenagers was hers. Hearing this, Sgt. Bennett began banging on the door of the apartment and yelling inside it through the door. Sgt. Bennett alternated between speaking with § 87(2)(b) while she was crying and yelling through the door that § 87(2)(b) had to open the door or he would arrest § 87(2)(b). Sgt. Bennett then said that he would have § 87(2)(b) kicked out of NYC Housing if § 87(2)(b) did not comply. § 87(2)(b) asked Sgt. Bennett what she would be arrested for, but he ignored her and continued banging on the door. Sgt. Bennett then instructed § 87(2)(b) to get the teenagers who were not related to her out of her apartment. § 87(2)(b) knocked on her apartment door and instructed § 87(2)(b) to open it and let her in. Upon entering, § 87(2)(b) instructed all of the teenagers to leave her apartment, apologizing, but explaining that she “didn’t want any trouble.” § 87(2)(b) then heard § 87(2)(b) say to Sgt. Bennett, “Get out of my apartment, you don’t have permission to enter! I’m calling 311!” Sgt. Bennett replied, “Fuck you! Do what you want to do. I’m a sergeant.” § 87(2)(b) went to retrieve his phone from his bedroom and call 311. Sgt. Bennett, whose foot had been in the doorway, then left the apartment.

§ 87(2)(b) stated that § 87(2)(b) informed her that the reason the police were there was because of a shootout, which she denied ever occurring. She stated that while she saw a female officer outside the building, likely PO Stephanie Achong, she never actually came to the hallway with the other officers. She thought there were two white/Hispanic males there, along with Sgt. Bennett. She was unable to recall or describe any other officers in any further detail.

§ 87(2)(b)

§ 87(2)(b) provided a telephone statement to Inv. D'Olimpio on March 19, 2007 (see enclosure # 11a). It should be noted though that when the undersigned investigator contacted § 87(2)(b) by phone on May 22, 2007, and explained that in order to go forward with his complaint, he must provide an in-person statement, § 87(2)(b) asked for some time to consider this. § 87(2)(b) ultimately withdrew his complaint on July 10, 2007, § 87(2)(b) § 87(2)(b) stated that this withdrawal was voluntary and he had not been coerced by anyone from the CCRB or the NYPD. A withdrawal letter was mailed to § 87(2)(b) with the request that it be signed, dated and returned to the agency.

§ 87(2)(b) was coming home from school with a group of friends, approximately 7-8 individuals, when officers stopped a group of people in front of them. After that, the officers approached his group and stopped them also, saying something about a shooting and that the suspect was wearing a red hat or a blue hat. § 87(2)(b) stated that no one was wearing that though and that he was wearing a black hat and a black vest with a hooded sweatshirt. However, the officers stopped and searched all of them by going into their pockets and checking their waist areas. They then arrested § 87(2)(b), § 87(2)(b) § 87(2)(b)'s girlfriend, placing her in handcuffs and into a police car. The officers then left.

The group continued on and was standing in front of § 87(2)(b) in the Bronx, as they were going to visit a friend § 87(2)(b) who lived there. However, the officers approached them again, so § 87(2)(b) came outside and they all went inside § 87(2)(b)'s apartment. While inside, some of the group, though not § 87(2)(b) was yelling at the officers from the apartment window, arguing with them, in a manner that § 87(2)(b) described as "not friendly." So the officers then came to the door and were knocking on it. § 87(2)(b)'s mother then went outside to speak with the officers. The officers in turn were saying how they were going to arrest her or get her evicted from her apartment if everyone did not leave her apartment. Even though they had not been doing anything, everyone left the apartment because § 87(2)(b)'s mother was really scared. As they were leaving the apartment, § 87(2)(b) saw that the officers were lined up outside the hallway. And as they all walked by, the officers were "getting in everyone's face" and seemed to be trying to provoke a fight. As § 87(2)(b) walked by, an officer said to him "What are you looking at?" and someone laughed. An officer then grabbed § 87(2)(b) by the neck and pushed him down the stairs. The sergeant then instructed the officer to "take him" and that is when officers threw § 87(2)(b) into the mailbox, were "hitting him and everything" and then placed him in handcuffs, searched him and put him into a police vehicle. § 87(2)(b) was transported to the 45th Precinct stationhouse, where he was released with a summons § 87(2)(a) 160.50

§ 87(2)(b) thought there were possibly 10 uniformed officers on scene, with multiple vehicles also present. He described the officer who initially searched him during the first stop as a tall white male with thick, dark hair. He was also the officer who arrested § 87(2)(b). He described an officer in his police van as a Hispanic male, with dark hair, a medium build and approximately 5'9. Another officer in the van was a short black male who was "kinda fat" and shorter than the other officer. He could not recall any of the officer's names or what anyone else looked like.

Officer Identification:

Both PO Stephanie Achong and PO Robert Kall were identified via the UF-250s as having been present for this incident. PO Eugene O'Reilly and PO Luis Batista were identified via the command log as having also been involved in this incident. Sgt. Bennett was identified via PO Batista as being the supervisor on scene during this incident. The remaining officers were identified via roll call as being partnered with the other officers (see enclosure # 21a-21i).

Officer Statements: Sgt. Bennett

Sgt. Mervin Bennett was interviewed at the CCRB on August 30, 2007 (see enclosure # 13a-13d). He stated that on January 12, 2007, he worked the hours of 1300x2335 and he was the patrol supervisor, working with PO Jose Martinez. He was dressed in uniform and assigned to a marked motor vehicle. He did not have any entries in his memobook regarding this incident.

On January 12, 2007, Sgt. Bennett was on patrol with PO Martinez when a call about a firearm was placed over the radio at a housing project. They responded to the location and Sgt. Bennett stated that he could not recall what officers were there, but he thought there were 6-8 of them. When asked if he recalled PO Kall, PO Achong, PO O'Reilly and/or PO Batista being there, he stated that he did, but he did not recall anyone else. When they arrived on scene, they immediately began canvassing the area for a gun and/or any individuals matching the description provided of the suspect. As they were doing so, some people from either the § 87(2)(b) floor of one of the buildings began yelling and pointing in one direction for the officers, seemingly indicating where either the gun or the suspect was located. As such, Sgt. Bennett recalled searching under garbage cans and inside the hallways and stairwells of a couple of buildings. As they were doing this, Sgt. Bennett received a call from an officer stating that they had stopped a person who matched the description of the suspect. Sgt. Bennett responded to the location and saw officers, again unknown, speaking with this individual. Officers frisked and questioned the individual, who was a black male wearing a red shirt. Sgt. Bennett stated that he thought the individual was initially alone, but after he was stopped, others stopped too. Eventually, after not finding a firearm, the group was sent on its way. Sgt. Bennett originally stated that he did not know if anyone else in the group was frisked and/or searched, but he later stated that after being frisked for the firearm, the group was released.

The officers continued to canvass the location when a group of males from a window on the § 87(2)(b) floor of a building began yelling and cursing down at the officers, taunting and threatening them. Sgt. Bennett explained that they were cursing and making guns with their fingers while saying "bow bow bow," as if shooting at the officers. A woman then approached Sgt. Bennett and spoke with him. She was the mother of one of the boys in the apartment and while he did not recall the exact conversation, he thought it was about the kids in her apartment and what they were doing. He and he assumed his officers, then followed her back to her apartment. When asked why he went to her apartment, Sgt. Bennett originally stated that it was because of the kids who were threatening them, but when asked to confirm if that was the reason, he stated that he was not sure if it was because of that or if the woman asked the officers for their assistance in removing some of the people from her apartment, as she did not know some of them.

Everyone entered the hallway and the woman knocked on her door. However, the kids in the apartment refused to grant her entry to her own apartment. The officers knocked on the door and instructed the kids to let her into her apartment and after approximately 5-10 minutes, the woman's son opened the door and allowed his mother into the apartment. Sgt. Bennett saw that there was a group of kids in the apartment, one of which he knew was the kid that had been stopped earlier. Sgt. Bennett stated that he was not sure if they instructed the kids to leave the apartment, but either way, the group of kids did leave. However, as they were leaving, they were cursing and being loud. This in turn was riling up the group of 25-30 people that were gathered outside the building. Because of this, Sgt. Bennett instructed his officers to arrest people and he knew 1-2 people were arrested at this time § 87(2)(a) 160.50. When asked if this occurred outside or inside the building, he stated that he did not recall. When asked if anyone was arrested outside the woman's apartment, he stated that it was possible one individual was arrested in the hallway as they were all going down the stairs. Sgt. Bennett thought there were some problems with at least one prisoner, the one PO Batista arrested, in that he was flailing his arms and resisting arrest. The officers were able to grab his arms though and force his arms behind his back. Sgt. Bennett then instructed his officers to gather their prisoners and bring them back to the stationhouse. All of the officers then left the scene.

Sgt. Bennett stated that he did not know if any other individuals were stopped, frisked or searched during this incident other than the one individual that he saw. He denied anyone entering the woman's apartment, though it should be noted that he later stated that he "knew they (the officers) entered her apartment on the § 87(2)(b) floor" which he later clarified as they entered the building, not her apartment. He denied yelling at the kids from the street to come out of their apartment, denied saying "fuck that shit, I'm banging the door down," or ever threatening to evict the woman. He also denied ever saying "fuck you, I'm a sergeant. Call 311" stating that one person did say their sister was a police officer and he told that person

to go ahead and call her and inform her that he was a sergeant. Lastly, Sgt. Bennett denied the allegation that the individual arrested by PO Batista was ever punched, kicked or thrown into a wall from what he observed.

PO Batista:

PO Luis Batista was interviewed at the CCRB on August 14, 2007 (see enclosure # 12a-12e). He stated that on January 12, 2007, he worked the hours of 1500x2335 and was assigned to conditions with PO Fred Jones. He was dressed in uniform and assigned to a marked motor vehicle. His memobook states;

“1618- 10-10 shots fired at § 87(2)(b); 1625- conducting a canvass in the area; in front of § 87(2)(b) a disorderly group formed due to 1 male stopped; 1655- 1 male under § 87(2)(a) male refused to follow lawful order, he started cursing and resisting causing public alarm; 1700- En route to 45 pct; 1725- 1 male released with a c summons; no injuries”

On January 12, 2007, PO Batista and PO Jones were on patrol when the call of shots fired came over the radio at § 87(2)(b) in Brooklyn, which is within the § 87(2)(b). When they responded, they conducted a canvass of the area and a vertical of one building, though PO Batista could not recall which one. The sector they were backing up, though PO Batista could not recall which sector, stopped one male who fit the description of the suspect. PO Batista stated that he did not see what the officers did with this individual, because he was ensuring the officers’ safety by watching the crowd that had begun to form. PO Batista explained that a group of 5-7 kids came and they were being disorderly. One male, identified as § 87(2)(b) kept inciting the crowd by cursing and waving his arms around. PO Batista explained to the group why the officers were there and instructed them to leave the scene and they all did, except for § 87(2)(b). However, a larger group then began to form again so PO Batista placed § 87(2)(b) under arrest. He explained that he thought he arrested him in front of a building and that § 87(2)(b) resisted a little by waving his hands and avoiding being cuffed. PO Batista then grabbed his arms and forcibly handcuffed him. PO Batista stated that he did not recall anyone else being arrested or issued a summons during this incident. He did see officers frisk other individuals though, but he could not recall specifically which officers were involved or who they frisked, but the reason for it was the gun run. § 87(2)(b) was eventually brought to the stationhouse, where he was released with a summons. The gun was not recovered at the scene.

PO Batista stated that he thought approximately 7-10 officers responded to this incident and he thought they were all uniformed officers from his command. He could not recall any of the officers who were there, despite being provided with names of officers who responded, except for Sgt. Bennett, who was the supervisor on scene. He stated that he thought Sgt. Bennett was also trying to get the crowd to back up, but he stated that he did lose sight of Sgt. Bennett when he was arresting § 87(2)(b). PO Batista denied ever going to an apartment or entering an apartment during this incident or speaking with any of the kids’ parents. He also stated that he did not recall if someone was screaming at them from an apartment window as there was a large crowd there.

PO Kall:

PO Robert Kall was interviewed at the CCRB on September 5, 2007 (see enclosure # 14a-14b). He stated that on January 12, 2007, he worked the hours of 1500x2335 and was assigned to patrol with PO Stephanie Achong. He was dressed in uniform and assigned to a marked motor vehicle. He did not have his memobook with him during his interview.

On January 12, 2007, PO Kall was on patrol with PO Achong when the call of either a gun run or shots fired was placed over the radio in a housing project. A description was also provided of the suspect and though PO Kall did not remember it exactly, he thought it was for a male and something about a colored shirt. They parked their car and began to walk into the projects. PO Kall thought a unit from PSA8 arrived at the scene before them, but he thought all of the officers arrived at the same approximate time. He thought approximately 10 officers were at the scene and he recalled Sgt. Bennett, PO O’Reilly, PO Batista and PO Valentino being there and thought it was possibly PO Vasquez and PO Martinez were there also.

He could not recall what other officers responded though. As they were entering the projects, PO Kall and PO Achong came across of group of around 3 people, a couple of whom matched the suspect's description. The officers stopped the group and questioned them. The two suspects were both frisked for weapons and after finding nothing, PO Kall and PO Achong explained to the group why they had stopped them, filled out UF-250s for it, and then instructed the group to leave the area. PO Kall and PO Achong then began to canvass the area, as were the other officers on scene.

As they were canvassing, PO Kall heard someone anonymously yell out a window that the gun had been thrown to an area and the person pointed to where it was. PO Kall walked to that location and began searching for the gun. As he was doing this, he noticed that officers were speaking with a group of people in front of a building, instructing them to leave the area and the group was initially refusing. PO Kall stated that as he was not a part of this interaction, he did not specifically know what occurred, but he thought that some of the group left the area and went inside the building and the ones who did not, were placed under arrest § 87(2)(a) 160.50. PO Kall recalled a female being walked past him to a police vehicle. However, the group that went inside the building then began yelling obscenities out of a window on the § 87(2)(b) floor at the officers. PO Kall thought the officers in turn were trying to get the group out of the apartment, possibly to question them about the shots that were fired. Because of this confrontation, a crowd started to form outside of the building. Seeing this, PO Kall joined the location and was attempting to get the crowd to leave the area. PO Kall stated that he thought the crowd got up to 10-15 people and that they were largely calm. As he was doing this, he did not know what was going on with other the officers or if they ever entered the building where the group was, but he stated that a little while later, Sgt. Bennett instructed all of the officers to resume patrol as no gun was located and no one was shot. Hearing this, PO Kall and PO Achong returned to their vehicle and left the location.

PO Kall stated that he thought this call lasted for at least 20 minutes. He stated that he knew a couple people were arrested but he never actually witnessed their apprehensions. He stated that he did not know which officers were originally dealing with that group of people and he did not know which officers entered the building or what, if anything occurred inside of it. He denied ever entering the building though.

Additional Officer Statements:

PO Stephanie Achong was interviewed at the CCRB on September 11, 2007 (see enclosure # 15a-15d). She stated that she and PO Kall were canvassing one side of the complex while officers were canvassing the other side. As they were doing so, they saw § 87(2)(b) with some friends, who matched the description of the suspect. He was frisked and after it was confirmed that he was not carrying a weapon, they were all sent on their way. They complied but PO Achong realized that the group just ended up going to the other officers that were on the other side of the complex. PO Achong, PO Kall and possibly PO Martinez then joined the other officers because they could hear a commotion going on over there. When she got there, PO Achong saw that there was a large, angry crowd of approximately 20 people, who were yelling and cursing at the officers and saying that they were going to call Channel 2 news. She described the crowd as being "disorderly" and "not compliant." PO Achong saw that officers, including Sgt. Bennett, were there trying to calm the crowd and get them to disperse. PO Achong also attempted to do this and after being there for approximately 5 minutes, when she saw PO Jones and PO Batista run into a building that people had been yelling at them out of. PO Achong stated that she did not know if any other officers went into the building or why they went in there or what they did, but she saw them go in. PO Achong remained on crowd control, until the officers exited the building and they were all instructed to resume patrol. PO Achong denied hearing Sgt. Bennett use any profanity.

PO Jose Martinez was interviewed at the CCRB on September 18, 2007 (see enclosure # 16a-16d). He only had a slight recollection of the incident. PO Martinez stated that after he and Sgt. Bennett responded to the scene, PO Martinez remained with the RMPs to guard them. He explained that when there are a few police cars on scene, someone has to stay with them, to make sure that they are not vandalized or struck with airmail. PO Martinez also stated that he recalled a couple of individuals yelling at the cops from a § 87(2)(b) floor window. He stated that their bodies were half in/half out of the window and they were trying to antagonize the officers on scene. He could not recall the specifics of what they were saying or if the officers said anything back to them. But he knew that a few officers did go inside the building, though he

did not recall who went into the building or for what reason. However, PO Martinez denied ever going into the building himself. PO Martinez denied ever hearing Sgt. Bennett say “Fuck that shit. I’m banging the door down” or use any profanity.

PO Fred Jones was interviewed at the CCRB on October 26, 2007 (see enclosure # 19a-19e). He stated that they responded to the scene as back-up for sectors A and E. When they arrived, PO Jones saw officers stop an individual who matched the description and PO Jones joined them. He had the description of the suspect played back over the radio so the individual could hear that they were not harassing him or singling him out. The male was frisked and released and he understood the situation. As the officers were walking away, PO Jones saw people in a building, pointing in the direction behind the individual, trying to direct them to where the gun was located. While officers canvassed the area searching for the gun, PO Jones and he thought PO Batista and PO Valentino went inside the building to interview the people. However, after 10 minutes in the building, none of the residents would answer their door and speak with the officers. PO Jones stated that he had not understood why they would not answer their door, until the officers walked back outside the building and saw that a large, angry crowd of approximately 25-30 people were there. The people were screaming at the officers, cursing at them, about how they were harassing the individual they had previously stopped. Instead of interacting with them, PO Jones walked to his patrol vehicle, which was approximately 10 feet away; as he saw that Sgt. Bennett was on scene and was trying to handle the situation. However one individual identified as § 87(2)(b) came out of the crowd and began to approach PO Batista. PO Jones told him to take it easy and that he did not know why they were there, but § 87(2)(b) kept yelling and cursing at the officers about harassment. This in turn caused the people that had begun to clear from the scene, to walk back and begin screaming again. Because of this, they decided to just arrest him. He was arrested without incident and he calmed down after he was placed in handcuffs. Eventually, PO Jones and PO Batista left the scene as he stated that no one could reason with the crowd and the best thing was to just take who they had at that point and go. PO Jones denied ever entering § 87(2)(b) and did not think PO Batista entered it either. He denied hearing Sgt. Bennett use any profanity and stated that the only people cursing were people in the crowd.

PO Eugene O’Reilly was interviewed at the CCRB on September 25, 2007 (see enclosure # 17a-17e). He stated that when he was canvassing the area, he came across a group of people in front of a building. Though they tried to explain their reason for being at the location, the crowd became upset and was yelling at them and refused to let them canvass. Because of this, PO O’Reilly arrested § 87(2)(b) for § 87(2)(a) 160.50 and removed her to his vehicle, which was parked outside of the project. He denied having any knowledge of people stopped previous to this, what occurred after he left the scene, or if officers went into one of the buildings.

PO William Valentino was interviewed at the CCRB on September 26, 2007 (see enclosure # 18a-18d). He stated that when he and PO O’Reilly arrived on scene, they began canvassing. While PO O’Reilly was talking with a woman, a man began directing PO Valentino to a courtyard. PO Valentino went to investigate the area and PO Kall joined him. After a few minutes, the officers heard yelling and screaming from the front of the building. They walked to the front and PO Valentino saw that PO O’Reilly already had § 87(2)(b) sitting in the back of the police vehicle and he and PO Achong were guarding it. There were also approximately 15 people screaming at the officers from buildings and from the outside about how they were calling Channel 2 and Al Sharpton and that the officers were racist. PO Valentino then saw PO Batista and probably PO Jones coming out of § 87(2)(b) with a male, identified as § 87(2)(b) in handcuffs and placed him inside a police car. PO Valentino stated that Sgt. Bennett was also on scene, but he was already outside the building when § 87(2)(b) was escorted out. Both prisoners were removed back to the stationhouse, where they were later released with a summons. PO Valentino denied witnessing either arrest or hearing Sgt. Bennett use any profanity.

Officers Not Interviewed:

§ 87(2)(g)

§ 87(2)(g)

SPRINT Report:

The SPRINT report states that two arrests were made, both of which were verified by the 45th Precinct's sergeant (see enclosure # 20a). No SPRINT in regard to the shots being fired was located.

Stop and Frisk Log/Report:

The stop and frisk log for the 45th Precinct shows that a UF-250 was filled out for both § 87(2)(b) and § 87(2)(b) by PO Achong and PO Kall respectively (see enclosure # 22a-22c). § 87(2)(b)'s report states that the stop lasted for approximately 1 minute and in that time, he was neither frisked nor searched. It states that the reason he was stopped was for fitting the description, wearing clothes/disguises commonly used in commission of a crime and for being in close proximity to the scene of a suspected offense. It describes the physical force being used as "hands on suspect." In turn, § 87(2)(b)'s UF-250 states that his stop lasted for approximately 2 minutes and that he was also not frisked or searched. The reasons for the stop listed are that he fit the description and a report from a "victim/witness/officer."

Command Log:

The 45th Precinct command log shows that both § 87(2)(b) and § 87(2)(b) were logged into the stationhouse at 4:50 PM (see enclosure # 23a-23b). Both individuals were arrested for and released with summonses § 87(2)(a) 160.50. Both are also listed as appearing normal.

Criminal Summons Dispositions:

§ 87(2)(b) was issued a summons at the 45th Precinct stationhouse by PO O'Reilly for § 87(2)(a) 160.50, while § 87(2)(b) was issued one by PO Batista (see enclosure # 24a-24b). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Criminal Conviction Histories:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB Histories:

While neither § 87(2)(b), § 87(2)(b), § 87(2)(b) nor § 87(2)(b) has filed or taken part in any past CCRB cases, § 87(2)(b) has (see enclosures # 3-7). § 87(2)(b)

While Sgt. Mervin Bennett, a member of the NYPD for 9 years, does not have any past CCRB substantiations, PO Eugene O'Reilly, a member of the NYPD for 4 years, does (see enclosures # 1-2). On January 26, 2005, in regard to case #200405643, the Board substantiated and recommended instructions for PO O'Reilly for speaking discourteously to an individual. The NYPD concurred with this penalty and PO O'Reilly was given instructions.

Conclusions and Recommendations

Facts:

The undisputed facts of this case are as follows; on January 12, 2007, officers received a call about shots being fired within the Dewey Housing Project. They responded to the location and stopped § 87(2)(b) and § 87(2)(b) who were with a group of friends. The group of friends was then released. They continued onto § 87(2)(b) where they encountered officers again. At that location, § 87(2)(b) was arrested § 87(2)(a) 160.50 and removed from the scene. The rest of the group went inside the building. From an apartment window, some of the group yelled comments and obscenities at the officers. Sgt. Bennett and unknown officers went to the apartment. Eventually, the group left the apartment and § 87(2)(b) was also placed under arrest § 87(2)(b). The officers left the scene with their prisoners, after not finding a gun, and both § 87(2)(b) and § 87(2)(b) were released with summonses § 87(2)(b).

Facts in Dispute:

§ 87(2)(g)

Assessment of Evidence:

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) In his initial account, § 87(2)(b) makes no mention of the officers using any profanity or of them threatening to evict his mother from her apartment. He also made no mention of his words and actions towards the officers, which led up to the second encounter at his apartment. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) did not allege any excessive profanity on the sergeant's part, as only one of the phrases seemed to be directed towards § 87(2)(b) when Sgt. Bennett allegedly said "Fuck you" after § 87(2)(b) alluded to the fact that he was going to file a complaint. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g) Sgt. Bennett also stated that he assumed all of his officers followed him into the building. § 87(2)(g)

§ 87(2)(g)

Analysis of Allegations:

Allegation A: Officers stopped § 87(2)(b), § 87(2)(b), § 87(2)(b) **and** § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

Allegation C: Officers searched § 87(2)(b), § 87(2)(b), § 87(2)(b) **and** § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

§ 87(2)(b) alleged that as he was walking with his friends, § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) officers stopped and searched them, explaining about the shots that were fired in the area. Despite being victims of this incident, this agency was unable to contact any of them. No one was able to provide § 87(2)(b) last name or his contact information or a telephone number for any of the other victims. While a telephone number was located for § 87(2)(b) it was no longer in service. And though multiple letters were mailed to § 87(2)(b), § 87(2)(b) and § 87(2)(b) none of which were returned to the agency, none of them ever contacted the CCRB. § 87(2)(b), § 87(2)(g)

Allegation B: Officers stopped § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

Allegation D: PO Eugene O'Reilly searched § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

Allegation I: Officers used physical force against § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

§ 87(2)(b) alleged that officers stopped him and his friends, and that PO O'Reilly then searched him before releasing him. § 87(2)(b) also alleged that as he was leaving § 87(2)(b)'s apartment, an officer attempted to provoke him and then officers used physical force against him by pushing him down the stairs, throwing him into a mailbox, and hitting him, before placing him under arrest. However, § 87(2)(b) later withdrew his complaint, § 87(2)(b)

§ 87(2)(b) He stated that this withdrawal was voluntary and he had not been coerced by anyone from the NYPD or the CCRB into withdrawing his complaint. Team 4 Assistant Supervisor Joy Stueven reviewed the audiotape. § 87(2)(b), § 87(2)(g)

Allegation E: Sgt. Mervin Bennett spoke rudely to § 87(2)(b) **at** § 87(2)(b) **in the Bronx.**

§ 87(2)(b) alleged that after exchanging words with Sgt. Bennett, Sgt. Bennett stated "Fuck that shit. I'm banging the door down" and then after § 87(2)(b) threatened to call 311, Sgt. Bennett stated "Fuck you! I'm a sergeant, call 311!" It should be noted though that during his initial complaint, § 87(2)(b) did not allege any profanity. Sgt. Bennett denied saying either of these phrases though. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) did state that Sgt. Bennett said "Fuck you! Do what you want to do. I'm a sergeant." § 87(2)(b), § 87(2)(g)

§ 87(2)(g), § 87(2)(b)

Allegation F: Sgt. Mervin Bennett threatened to arrest § 87(2)(b) at § 87(2)(b) in the Bronx.

Allegation G: Sgt. Mervin Bennett threatened to evict § 87(2)(b) from her apartment at § 87(2)(b) in the Bronx.

Allegation H: Sgt. Mervin Bennett entered § 87(2)(b) apartment § 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that when Sgt. Bennett was attempting to remove the group of teenagers from her apartment, he threatened to arrest her and then threatened to have her evicted if they did not leave the apartment. § 87(2)(b) then re-entered her apartment and Sgt. Bennett followed her in to the extent that he had a foot in the apartment and was in the doorway. However, § 87(2)(b) later withdrew her complaint, § 87(2)(b). A withdrawal letter was mailed to § 87(2)(b) which she signed and returned to the agency. The letter was received at the CCRB on March 14, 2007, and was added to the case file. § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: